

"); *Standard Brands of California v. Bryce* (1934) 1 Cal.2d 718, 721 ["The subject matter of an action and the issues involved are determinable from the facts pleaded, rather than from the title or prayer for relief. [Citation omitted.]"].)

Second, even if the reference in the prayer to judgments entered in June or July 2024 could be considered in evaluating the sufficiency of the causes of action alleged, the Statement of Decision and Judgment by the Court attached as Exhibit 2 to Defendants' Request for Judicial Notice shows the decision and judgment against Plaintiff was issued and filed in the Kim Action on February 20, 2024. (Def. RJN Exh. 2.) Notably, Plaintiff has attached numerous documents to the complaint and her opposition to the demurrer, but she has not attached the "judgments" she asserts were entered in the Kim Action in June and July 2024, and she has not addressed the February 20, 2024 Statement of Decision and Judgment in her opposition.

In any event, though actual injury is alleged in the complaint between August and December 2023, the filed February 20, 2024 Statement of Decision and Judgment entered in the Kim Action is an "adverse judgment" under *Laird* and "actual injury" under *Jordache* sufficient to commence the statute of limitations not later than that date. Even if subsequent "judgments" were entered in the case based on the Statement of Decision and Judgment entered on February 20, 2024, Plaintiff cites no authority that would not make the statute of limitations commence based on entry of the Statement of Decision and Judgment on February 20, 2024 under *Laird*, *Jordache*, and the actual injury provision of Code of Civil Procedure section 340.6(a).

Conclusion on Demurrer Based on Statute of Limitations and Whether to Grant Leave to Amend

Based on Plaintiff's own allegations and the February 20, 2024 Statement of Decision and Judgment of which the Court takes judicial notice, the complaint "clearly and affirmatively" demonstrates that the claims alleged by Plaintiff are barred by the statute of limitations. (*Committee for Green Foothills, supra*, 48 Cal.4th at 42; *Lee v. Hanley, supra*, 61 Cal.4th at 1232.) Plaintiff commenced this action in June 2025, months after the one-year statute of limitations of Code of Civil Procedure section 340.6 had expired.

Plaintiff in her opposition asks for leave to amend if the demurrer is sustained, but Plaintiff does not explain what additional facts she can allege to demonstrate that her claims are not barred by the statute of limitations. Nevertheless, given that this is the first time the Court has reviewed the merits of Plaintiff's claims, the Court will grant Plaintiff to amend to try to state claims that are not time-barred under Code of Civil Procedure section 340.6.

16. 9:00 AM CASE NUMBER: L23-03430
CASE NAME: TALBOT LAW GROUP, P.C., VS. TIFFANY COOPER
HEARING IN RE: MOTION FOR RECONSIDERATION OF SANCTIONS ORDER
FILED BY:
TENTATIVE RULING:

Appearance required.

17. 9:00 AM CASE NUMBER: MSC20-00566
CASE NAME: BENITEZ VS. STILLWATER INSURANCE COMPANY
*HEARING ON MOTION IN RE: LEAVE TO FILE TO FIRST AMENDED COMPLAINT
FILED BY: BENITEZ, JOHN
TENTATIVE RULING:

Before the Court is a motion by plaintiffs for leave to file a first amended complaint. For the reasons set forth, the motion is granted. Plaintiffs shall file their first amended complaint **by December 29, 2025**.

Background

This case involves an insurance dispute between plaintiffs and their insurer Stillwater Insurance Company following a fire at their residence. Plaintiffs' original complaint included a single cause of action for breach of the implied covenant of good faith and fair dealing against Stillwater.

After filing the complaint, an arbitration was held by an appraisal panel that determined an "actual cash value" (ACV) for their losses in an appraisal award issued in July 2022 ("first appraisal award"). (Kerley Decl. Exh. B [Prop. First Amended Complaint ("FAC") ¶ 21].) On motion, the Court vacated the first appraisal award. (FAC ¶ 22.) A second arbitration was conducted, and a second appraisal award was issued in November 2024 in which the appraisal panel determined the replacement cost value (RCV) of Plaintiffs' claimed losses was approximately \$201,000. (Prop. FAC ¶ 23; Yu Decl. ¶ 9 and Exh. 6.)

Plaintiffs allege in their proposed FAC that after the November 2024 second appraisal award with the \$201,000 RCV determination was confirmed, they made a claim to Stillwater on their policy for over \$596,000, which they allege Stillwater improperly denied. (Kerley Decl. Exh. B [Prop. FAC ¶¶ 24, 25].) Plaintiffs state that the proposed FAC eliminates claims that have been resolved concerning personal property losses and additional living expenses. (Kerley Decl. ¶ 2.) Plaintiffs also contend the proposed FAC addresses "Stillwater's refusal to pay replacement-cost benefits for repair of the dwelling following substantial completion of the repairs. The amendment also adds a narrowly drawn cause of action for declaratory relief, allowing the Court, in its discretion, to determine whether Stillwater's payment of the November 2024 appraisal award constitutes a proper basis to deny replacement-benefits coverage under Insurance Code § 2051.5." (Kerley Decl. ¶ 2.)

Legal Standards for Motion for Leave to Amend

The Court has broad discretion to grant leave to amend a pleading at any stage in a case. (*See* Code Civ. Proc. § 473(a) [court may allow amendment "in furtherance of justice, and on any terms as may be proper"].) (*See also* Code Civ. Proc. § 576 ["Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order."].) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.